

26NWCV00804 26NWCV00804

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Case Number: 26NWCV00804 Hearing Date: September 3, 2026 Dept: P

REBECCA SIMIN, LLC v. HAUS.ME INC., ET AL.

CASE NO.: 26NWCV00804

HEARING: 09/03/2026 @ 9:30 AM

#8

TENTATIVE ORDER

Plaintiff's request for a preliminary injunction deeming the Pod abandoned and authorizing its disposition is GRANTED. This Order will take effect upon payment of an undertaking in the amount of \$500.

Plaintiff to give notice.

This OSC re: Why The Pod Should Not Be Deemed Abandoned is on calendar pursuant to Court's Order on August 13, 2026.

Background

On March 4, 2026, Plaintiff Rebecca Simin, LLC (Plaintiff) filed this breach of lease action against Defendants Haus.Me Inc., Max Gerbut, and Does 1 through 10 (collectively, Defendants). The complaint alleges that on July 5, 2023, Plaintiff, as landlord, and Defendants, as tenant, entered into a written commercial lease agreement (Lease) for certain real property located at 12906 Telegraph Road in the City of Santa Fe Springs, County of Los Angeles, California 90670 (Subject Premises) that contained a warehouse and yard.

(Complaint, ¶ 11.) The complaint alleges that Defendants defaulted in the payments under the Lease and that “[i]n...late July 2025, Defendant finally removed certain personal property from the interior warehouse space, left behind substantial debris, materials, and mini-houses in the yard areas, and surrendered possession by returning the keys at the end of July 2025.”

(Complaint, ¶ 23.)

The complaint asserts six causes of action: (1) breach of commercial lease; (2) breach of the implied covenant of good faith and fair dealing; (3) failure to surrender possession/damage to premises; (4) trespass; (5) Unfair Business Practices (Bus. & Prof. Code, § 17200, et seq.); and (6) declaratory relief.

On August 13, 2026, the Court granted Plaintiff’s ex parte application for temporary orders concerning a prefabricated mobile structure/container/POD (the Pod) located at 12906 Telegraph Road, Santa Fe Springs, California (Subject Premises). The Court granted a temporary restraining order (TRO) and set the instant OSC Re: Why The Pod Should Not Be Deemed Abandoned for today’s date and set a briefing schedule as well as a deadline for a verified election.

On August 14, 2026, Defendants filed a Verified Election and Ownership Disclosure.

Legal Standard

“A court [has] the power to issue a preliminary injunction that mandates an affirmative act that changes the status quo but should do so only in those extreme cases where the right thereto is clearly established.” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1184, citations and internal quotations omitted.) “The judicial resistance to injunctive relief increases when the attempt is made to compel the doing of affirmative acts. A preliminary mandatory injunction is rarely granted and is subject to stricter review on appeal. The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established.” (People ex rel. Herrera v. Stender (2012) 212 Cal.App.4th 614, 630, citations and internal quotations omitted.)

“A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the

one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor.” (Code Civ. Proc., § 527, subd. (a).) “In deciding whether to issue a preliminary injunction, a court must weigh two ‘interrelated’ factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction...The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (Butt v. State of California (1992) 4 Cal.4th 668, 677-78, citations omitted.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.)

Discussion

On August 13, 2026, the Court heard and granted Plaintiff’s ex parte application for temporary orders concerning the Pod.

The relevant facts are stated in the Court’s Minute Order on August 13, 2026. Briefly, this matter involves Defendants’ Pod which was left on the Subject Premises and has become the subject of a City of Santa Fe Springs directive against Plaintiff, ordering Plaintiff to remove the Pod because it is a public nuisance. Defendants had not responded to Plaintiffs’ communications requesting it to retrieve the Pod or confirm its abandonment.

Plaintiff shows that it will suffer harm if an injunction is not issued. “On or about July 8, 2026, Plaintiff received a Notice of Violation from the City of Santa Fe Springs, Case No. 26-000402. The City identified Plaintiff as the property owner and legally responsible party, found that the POD reduces the number of required parking spaces, identified the unpermitted POD as a prohibited public nuisance, and directed Plaintiff to remove it and restore the required parking.” (Dardashti Decl., ¶ 8.) Plaintiff had not been able to remove it because Defendants had “not identified the POD’s legal owner, produced title or registration records, identified a lienholder or customer, selected a mover, requested a removal date, or otherwise taken responsibility for the POD.” (Dardashti Decl., ¶ 12.)

Plaintiff also establishes a reasonable likelihood of success on the merits of its failure to surrender possession/damage to premises

claim. "In order to constitute an abandonment or surrender of the premises, which on acceptance by the landlord will constitute a surrender of the lease by operation of law, there must be such a relinquishment by the tenant as will justify an immediate resumption of possession by the landlord, and, where there is such a relinquishment, there is a sufficient abandonment or surrender." (Pickens v. Johnson (1951) 107 Cal.App.2d 778, 788.) Plaintiff argues that the complaint alleges surrender and continued obstruction and cites that Defendants' answer alleges surrender, acceptance, and termination. Moreover, there is no doubt that the Pod belongs to Defendants and that it should be deemed abandoned, as Defendants, themselves, confirm this. Following the issuance of the TRO, Defendants submit the following verified disclosure:

My name is Max Gerbut. I am President of Haus.me, Inc. There is a POD at 12906 Telegraph Road, Santa Fe Springs, California. Haus.me, Inc. is the owner of the POD. There is no serial number or other identifying number for the POD. There are no liens on the POD and no third party has any interest in the POD. Haus.me Inc. hereby relinquishes any right to the POD or any ownership in the POD.

(Defendants' Verification & Disclosure.) Defendants do not otherwise oppose a preliminary injunction.

Based on the foregoing and through Defendants' disclosure, the Pod is deemed abandoned. Plaintiff is authorized to dispose of the Pod.

This Order will take effect upon Plaintiff's payment of an undertaking in the amount of \$500.

Plaintiff to give notice.